

signee of a lease and had entered into no covenants (*d*). And if the executor has assented to the bequest unconditionally, he is held to have waived his claim to indemnity (*e*).

Principle of practice.—It is difficult to say upon what principle this practice of the Court is based. In some of the older cases the judges seem to have thought that it was to indemnify the *executor*. But as the distribution of the assets is made by the *Court*, and is *not the act of the executor*, it is impossible to maintain that the executor can be personally liable for the debt. In other cases the fund is said to be set apart out of regard to the interests of the lessor. But if the lessor can prove by way of claim in the suit, why, should the Court protect one who will not protect himself; and if he cannot prove in the suit (*f*), it seems anomalous that the Court, while it refuses to hear the lessor on the subject of his interest, should deal with the assets behind his [*446] back in respect of such interest. The *whole doctrine, said V. C. Kindersley, is in a very unsatisfactory state, and does not seem to be founded on sound principle (*a*).

22 & 23 Vict. c. 35.—By Lord St. Leonards' Act (22 & 23 Vict. c. 35, s. 27), where an *executor* has satisfied all accrued liabilities under a *lease*, and has set apart a fund to answer covenants for expenditure of *fixed sums* on the property (which would not include rents) and assigns the lease to a purchaser, he may distribute the assets without being personally liable to the lessor, who however may still follow the assets in the hands of the recipients.

Practice since the Act.—The practice of the Court for the future has not yet been settled (*b*), but it is presumed that

(*d*) *Garratt v. Lancefield*, 2 Jur. N.S. 177. N.B. It may be collected from the judgment that the ordinary covenant to indemnify had not been entered into by the testator on the occasion of the assignment to him.

(*e*) *Shadbolt v. Woodfall*, 2 Coll. 30; and see *Smith v. Smith*, 1 Dr. & Sm. 384.

(*f*) See *King v. Malcott*, 9 Hare, 692; *Re Haytor Granite Company*, 1

L. R. Eq. 11; *Smith v. Smith*, 1 Dr. & Sm. 387.

(*a*) *Smith v. Smith*, 1 Dr. & Sm. 387.

(*b*) *Smith v. Smith*, 1 Dr. & Sm. 384. In *Reilly v. Reilly*, 34 Beav. 406, the Court after a lapse of eight years, and no claim having been made, distributed the fund which had been set apart for an indemnity.